

Ram Prasad Vishwakarma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 July 2024 · 2024:AHC:117191-DB · WRIT - C No. - 21149 of 2024 · **Provisional assessment not quashed; EE to pass final assessment per Supply Code.**

HEADNOTE

A writ to quash a theft-related provisional assessment notice fails where objections remain pending. The Court will not quash the notice and instead directs the Executive Engineer to pass the final assessment strictly under the U.P. Electricity Supply Code, 2005, and to decide any pending compounding application in accordance with law.

FACTUAL SUMMARY

Ram Prasad Vishwakarma filed a writ petition challenging a notice of provisional assessment dated 16 May 2024 issued by the electricity department in a case of alleged theft of electricity. On 4 July 2024 the Court granted the department two weeks to complete instructions. At the hearing on 23 July 2024, counsel for the petitioner admitted that objections to the notice had already been filed and had not yet been decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

final assessment after theft provisional notice

HOLDING

Where objections to a notice of provisional assessment in an alleged theft case have already been filed and remain undecided, no ground is made out to quash the notice. The petition is disposed of with a direction to the concerned Executive Engineer to pass the order of final assessment strictly in accordance with the U.P. Electricity Supply Code, 2005, and to dispose of any still-pending compounding application in accordance with law. ¶ 4-6

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

A writ to quash a theft-related provisional assessment notice fails where objections remain pending. The Court will not quash the notice and instead directs the Executive Engineer to pass the final assessment strictly under the U.P.. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT AND THE QUANTUM OF ASSESSMENT

left to the Executive Engineer to pass a final assessment under the Supply Code ¶ 5

NOT DECIDED — PENDING COMPOUNDING APPLICATION, IF ANY

to be disposed of in accordance with law if still pending ¶ 6